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SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

STATE OF ARIZONA, *ex rel.*
KRISTIN K. MAYES, Attorney General,

Plaintiff,

v.

BOTANIC TONICS, LLC and
JERRY ROSS f/k/a JERRY CASH and
JANE DOE ROSS, husband and wife,

Defendants.

Case No.

COMPLAINT

(Jury Trial Demanded)

Plaintiff, the State of Arizona *ex rel.* Kristin K. Mayes, the Attorney General (the “State”), alleges the following for its Civil Complaint (the “Complaint”) against Defendants Botanic Tonics, LLC and Jerry Ross f/k/a Jerry Cash (“Defendant Ross”) and Jane Doe Ross (collectively, “Defendants”). In support of its claims, the State alleges the following:

INTRODUCTION

1. This is a consumer protection action arising from Defendants Botanic Tonics, LLC and its founder Jerry Ross's marketing and sale of *feel free*, a two-ounce drink containing the psychoactive substances kratom and kava. Defendants have sold *feel free* throughout Arizona at gas stations, convenience stores, and other mainstream retail locations, as well as online, while marketing it as a wellness tonic, energy product, kava drink, and alternative to alcohol.

2. But *feel free* presents serious risks that Defendants' marketing concealed or minimized. Kratom can produce opioid-like effects and carries risks including dependence, addiction, and withdrawal. Kava also presents health risks, particularly when consumed in concentrated amounts or in combination with other substances. *Feel free* combines these two psychoactive substances in an easy-to-consume, flavored shot marketed for regular use in Arizona.

3. Defendants knew about these risks from the beginning. Defendant Ross developed *feel free* after years of experimenting with combinations of substances, ultimately settling on a formula combining kratom and kava. Before bringing *feel free* to market, Defendant Ross consumed the product heavily himself—reaching approximately six bottles a day—and has described experiencing increased euphoria with increased consumption, withdrawal symptoms, and ultimately feeling “toxic.”

4. Defendants' knowledge only increased after *feel free* reached consumers. Defendants received and monitored reports from consumers describing dependence, severe withdrawal, escalating consumption, financial hardship, rehabilitation, and other adverse consequences associated with *feel free*. Defendant Ross himself placed his personal telephone number on early *feel free* packaging and received direct communications from consumers about their experiences with the product. And through online sales, Defendants had visibility into purchasing patterns reflecting repeated and, in some instances, extremely heavy consumption.

1 5. Yet rather than adequately disclose these risks, Defendants built and
2 expanded the market for *feel free* by presenting the product to Arizona consumers in ways
3 that obscured its nature and risks. Their unfair and deceptive practices have taken five
4 principal forms.

5 6. First, Defendants obscured *feel free*'s kratom content and failed to adequately
6 disclose its risks of addiction, dependence, withdrawal, and other adverse health effects.
7 Defendants repeatedly promoted *feel free* as a "kava" product made from kava and "other
8 ancient plants," while minimizing or omitting that the product also contained kratom. Their
9 own website published scores of articles and promotional materials focused on kava
10 without mentioning kratom. And Defendants failed to adequately warn Arizona consumers
11 about the risks associated with consuming *feel free* even as they became aware that
12 consumers were reporting addiction, withdrawal, and other serious adverse effects.

13 7. Second, Defendants affirmatively marketed *feel free* as a benign wellness
14 and energy product inconsistent with the risks they knew it presented. Defendants modeled
15 *feel free*'s packaging and retail strategy on products such as 5-hour Energy, sold it
16 alongside ordinary consumer products at mainstream retail locations in Arizona, and
17 promoted it as a wellness tonic, energy shot, plant-based supplement, and fitness aid.
18 Defendants also represented or suggested that *feel free* was safe, free from significant side
19 effects, and comparable to familiar substances such as sugar or caffeine. These
20 representations encouraged Arizona consumers unfamiliar with kratom to try *feel free*
21 without understanding the nature of the product or its risks.

22 8. Third, Defendants promoted *feel free* as an alternative to alcohol—including
23 to consumers seeking sobriety—without adequately disclosing that they were substituting
24 one substance presenting risks of dependence, addiction, and withdrawal for another.
25 Defendants marketed *feel free* to people seeking to reduce or stop drinking alcohol,
26 including recovering alcoholics and "sober curious" consumers, and represented or implied
27 that *feel free* could help consumers pursue sobriety and healthier lifestyles. In doing so,
28

1 Defendants targeted Arizona consumers for whom the omitted information about *feel free*'s
2 addiction and withdrawal risks was particularly material.

3 9. Fourth, Defendants deceptively associated *feel free* with health, fitness, and
4 "natural" wellness despite facts inconsistent with those representations. Defendants
5 promoted *feel free* through gyms, spas, chiropractic offices, influencers, and wellness-
6 oriented marketing, including claims encouraging consumers to use the product in
7 connection with exercise. Defendants also emphasized *feel free*'s purportedly natural,
8 plant-based character while, as alleged below, using ingredients and processing
9 inconsistent with the impression conveyed by that marketing.

10 10. Fifth, even after Defendants knew that consumers were reporting dependence
11 and escalating consumption, they employed sales practices designed to encourage repeated
12 and increased purchases of *feel free*. Defendants' direct-to-consumer sales gave them
13 visibility into customers' purchasing histories, including instances in which Defendants
14 themselves recognized that consumers were purchasing more *feel free* than recommended.
15 Yet, Defendants simultaneously promoted recurring subscriptions, offered substantial
16 discounts for subscription purchases over one-time purchases, and operated a rewards
17 program that provided increasing benefits as consumers spent more on *feel free*.

18 11. Defendants' practices enabled them to introduce kratom to a far broader
19 population of consumers without adequately informing those consumers of what they were
20 buying or its risks. Before *feel free*, kratom remained unfamiliar to most consumers. It was
21 principally sold through specialty outlets that consumers had to affirmatively seek out and
22 came in forms that required preparation by consumers, limiting casual use. Defendants
23 transformed the kratom market by packaging kratom and kava in a flavored, ready-to-drink
24 shot; placed it in the impulse section of gas stations, convenience stores, grocery stores,
25 and other mainstream retailers; and marketed it to consumers who otherwise might never
26 have sought out a kratom product. *Feel free* is now sold at more than 30,000 retail locations
27 nationwide, including hundreds of locations throughout Arizona.

12. Defendants achieved that growth while withholding or obscuring information that would matter to Arizona consumers deciding whether—and how much—*feel free* to consume. Consumers encountering what appeared to be a wellness tonic, energy shot, kava drink, fitness aid, or alcohol alternative were not adequately informed that the product contained kratom or of the material risks associated with its use. And consumers whom Defendants encouraged to consume *feel free* repeatedly were not adequately informed of the risks of dependence, withdrawal, and other adverse consequences associated with escalating use.

13. Defendants' conduct is particularly troubling because the alleged deception was not the product of ignorance about how *feel free* affected consumers. Defendant Ross experienced the effects of heavy *feel free* consumption himself before the product's launch. After launch, Defendants received consumer reports describing addiction, withdrawal, and other serious consequences. Yet Defendants continued to market *feel free* in ways that minimized those risks while expanding its availability and encouraging repeat consumption.

14. Defendants knowingly marketed an addictive and harmful product through deceptive and misleading representations, omissions, and unfair business practices designed to drive sales while concealing material risks from Arizona consumers.

15. This conduct violates the ACFA.

16. For these reasons, the State brings this action seeking to safeguard the rights and lives of Arizona consumers.

PARTIES

17. Plaintiff is the State of Arizona *ex rel.* Kristin K. Mayes, the Attorney General of Arizona, who is authorized to bring this action under the Arizona Consumer Fraud Act, A.R.S. §§ 44-1521 to -1534 (the “ACFA”).

18. Defendant Botanic Tonics, LLC is a limited liability company formed in Delaware with its principal place of business located in Broken Arrow, OK.

1 19. Since 2020, Botanic Tonics has sold millions of bottles of *feel free* in
2 Arizona.

3 20. Defendant Jerry Ross, f/k/a Jerry Dale Cash, is an individual residing in
4 Malibu, California. He is the inventor of *feel free*, the founder of Botanic Tonics, LLC, its
5 sole active owner, its Chief Executive Officer from approximately 2020 to April 22, 2024,
6 and the Chairman of its Board from at least 2024 through the present. At all times relevant
7 to this Complaint, Ross directly participated in, directed, managed, operated, controlled,
8 and had knowledge and the ability to control the operations and decision-making of Botanic
9 Tonics, including the acts and practices set forth in this Complaint.

10 21. Upon information and belief, Defendant Ross directly participated in and/or
11 had knowledge and the ability to control the unlawful acts and practices alleged herein. He
12 designed, approved, implemented, supervised, or enforced key aspects of *feel free*'s design,
13 marketing, advertising, and sales, and knew or should have known that the alleged acts and
14 practices were of the nature prohibited by the ACFA.

15 22. Jane Doe Ross is named in the event that Defendant Jerry Ross is married
16 and that community property exists against which the State can obtain monetary relief in
17 this matter. If Defendant Ross is married and the State learns the true identity of Jane Doe
18 Ross, it will move to amend its Complaint accordingly.

19 23. At all relevant times, Defendants acted individually and jointly with each
20 other in committing all acts alleged in this Complaint, advertising, marketing, distributing,
21 and/or selling kratom products to consumers throughout the State of Arizona.

22 **JURISDICTION AND VENUE**

23 24. The ACFA, A.R.S. §§ 44-1521 to 44-1534, authorizes the State to bring this
24 action to obtain injunctive relief to permanently enjoin and prevent the unlawful acts and
25 practices alleged in this Complaint, and to obtain other relief, including restitution,
26 disgorgement of profits, gains, gross receipts, or other benefits, civil penalties, and costs
27 and attorneys' fees.

1 25. This Court has subject matter jurisdiction over this matter pursuant to A.R.S.
2 § 12-123 and Article VI, Section 14, of the Arizona Constitution.

3 26. This Court may issue appropriate orders both prior to and following a
4 determination of liability pursuant to A.R.S. § 44-1528.

5 27. Defendants caused events to occur in this state, out of which the claims which
6 are the subject of this Complaint arose.

7 28. This Court has personal jurisdiction over the Defendants because they
8 purposefully directed and conducted business activities towards Arizona and Arizona
9 consumers and have purposefully availed themselves of this forum by conducting business
10 in the State and by causing harm as a direct and proximate result of their actions. The
11 Defendants regularly transact and/or solicit business in the State and/or derive substantial
12 revenue from goods used or consumed in the State and/or contract to supply goods in the
13 State and/or cause injury by acts or omissions in the State and/or cause injury in the State
14 by acts or omissions outside the State.

15 29. Defendant Ross is the founder and sole active owner and investor in Botanic
16 Tonics and is the only owner who participates in the management and operation of the
17 company. He was Botanic Tonics' CEO from approximately 2020 through April 2024 and
18 continues to participate in Botanic Tonics' management and strategic decision-making as
19 both an active owner and Chairman of its Board. Botanic Tonics' other investors are
20 passive investors who do not participate in day-to-day management or operations, make
21 operational decisions, or possess authority to direct or bind the company. Defendant Ross
22 is the individual who purposefully directed and controlled Botanic Tonics' business
23 activities toward Arizona and Arizona consumers. Indeed, *feel free*'s packaging used to
24 include Defendant Ross's personal phone number, and consumers would call him directly
25 to share their experiences with the product. On information and belief, the same packaging
26 was used for *feel free* bottles sold in Arizona, and Defendant Ross thus invited Arizona
27 consumers to contact him personally about *feel free*.

30. Defendant Ross directly participated in and/or had knowledge and the ability to control the unlawful acts and practices alleged herein. He designed, approved, implemented, supervised, or enforced key aspects of *feel free*'s design, marketing, advertising, and sales, and knew or should have known that the alleged acts and practices were unlawful. Defendant Ross delivered false and misleading advertising into the state through marketing interviews and other statements accompanied by unique promotional codes that allow Defendants to trace purchases by Arizona consumers to those advertisements. Defendants have the requisite minimum contacts with Arizona necessary to permit this Court to exercise jurisdiction. This action arises out of, and relates to, Defendants' contacts with this forum.

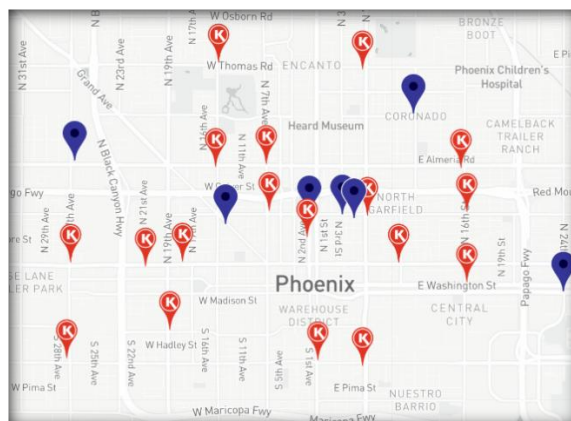
31. Venue is appropriate in Maricopa County pursuant to A.R.S. § 12-401(17).

FACTUAL ALLEGATIONS

32. Defendants created, manufacture, advertise, and sell *feel free* Classic tonic and *feel free* Classic capsules ("*feel free*"), first bringing *feel free* to market in 2020, and achieving market dominance since that time.

33. Defendants tout Botanic Tonics as "one of the fastest growing brands in the US," and have described *feel free* as "the fastest growing product in the U.S."

34. Since approximately 2021, Defendants have sold millions of bottles of *feel free* in Arizona. It is available at hundreds of stores in Arizona, and over 30,000 retail locations nationwide. This image depicts the 25 closest locations to this Courthouse where *feel free* is available:



1 **I. *Feel Free* Contains Psychoactive Substances That Present Material**
2 **Risks of Dependence, Withdrawal, and Other Adverse Effects.**

3 **a. Kratom and *Feel Free* Present Material Risks of Dependence,**
4 **Withdrawal, Impairment, and Other Adverse Effects.**

5 35. *Feel free* contains two psychoactive drugs, kratom and kava.

6 36. Kratom's primary psychoactive components are mitragynine and 7-
7 hydroxymitragynine (7-OH), which engage the brain's opioid receptors, creating
8 significant risks for dependence, withdrawal, and toxicity. At low doses, kratom acts as a
9 stimulant, and at higher doses, it acts like a traditional opioid.

10 37. According to the Food & Drug Administration (FDA), kratom is an opioid
11 and its addictiveness is on par with controlled narcotics. In 2018, FDA warned consumers
12 not to use kratom, documenting deaths in otherwise healthy young people, and explaining
13 that it can cause liver toxicity, seizures, substance use disorder, and death. Other kratom
14 side effects include respiratory depression, cardiac or respiratory arrest, coma, high blood
15 pressure, hallucinations, delusions, dizziness, drowsiness, confusion, depression, weight
16 loss, vomiting, and constipation.

17
18
19 38. The FDA found kratom to be addictive, observed people having cravings,
20 continuing to use it despite adverse consequences, needing more to get the same high, and
21 experiencing physical withdrawal when quitting. When expectant mothers take kratom
22 while pregnant, their babies can experience withdrawal after birth.

23
24 39. Cycles of addiction and withdrawal are nearly identical between heroin and
25 kratom. Rehabilitation centers in Arizona treat for kratom, using the same methods as with
26 other opioid addiction. The detox medications used for kratom addictions are the same that
27 are used to treat heroin and fentanyl addictions.
28

1 40. The Drug Enforcement Administration (DEA) has declared kratom a Drug
2 and Chemical of Concern that can induce physiological dependence by users, leading to
3 addiction.
4

5 41. The Centers for Disease Control & Prevention (CDC) recently reported that
6 kratom exposure reports to poison control hotlines surged 1,200% since 2015 and more
7 than doubled from 2024 to 2025. Hospitalizations linked solely to kratom increased by
8 more than 1,150% over the 10-year period. Hospitalizations linked to kratom used in
9 conjunction with other substances, such as illegal drugs or antidepressants, increased
10 almost 1,300%. Overall, 13% of reported kratom exposures resulted in a severe medical
11 outcome.
12

13
14 42. Despite kratom-related deaths and injuries being severely underreported, the
15 Arizona Department of Health Services has identified 146 documented kratom deaths in
16 Arizona between 2020 and 2023 alone.
17

18 43. Kratom has been banned by: 20 countries, including the southeast Asian
19 countries where kratom is grown; 9 U.S. states and a growing number of localities; and all
20 branches of the U.S. military. Our military views kratom as a threat to readiness, discipline,
21 and health, requiring those caught using it to be evaluated for substance use disorder and
22 receive drug abuse training.
23

24 44. In addition to kratom, *feel free*'s other main ingredient is kava, a central
25 nervous system depressant that acts on gamma-aminobutyric acid (GABA) receptors in the
26 brain and has sedative, muscle-relaxing, and euphoric properties.
27
28

1 45. Kava poses risks to the liver and central nervous system. In 2020, the FDA
2 warned that kava is not safe for use as a recreational or relaxation beverage.

3 46. Reports to poison control centers about kava exposure *had* dropped
4 significantly after a 2002 FDA advisory on kava-associated severe liver injury, but have
5 spiked again in the years since *feel free* entered the market. The spike has also coincided
6 with higher rates of severe clinical outcomes.
7

8 **b. *Feel Free* Combines Kratom and Kava in a Concentrated,**
9 **Ready-to-Drink Product.**
10

11 47. Prior to Defendants' launch of *feel free* in 2020, kratom was a niche product
12 that users had to seek out at smoke shops. Kratom used to require preparation from a
13 powder or ground leaves into a drink and had a bitter taste, which discouraged impulsive
14 use. It was composed almost entirely of fiber, leading to feelings of fullness and bloating.
15 Because of these barriers to entry, few people were using kratom by accident.

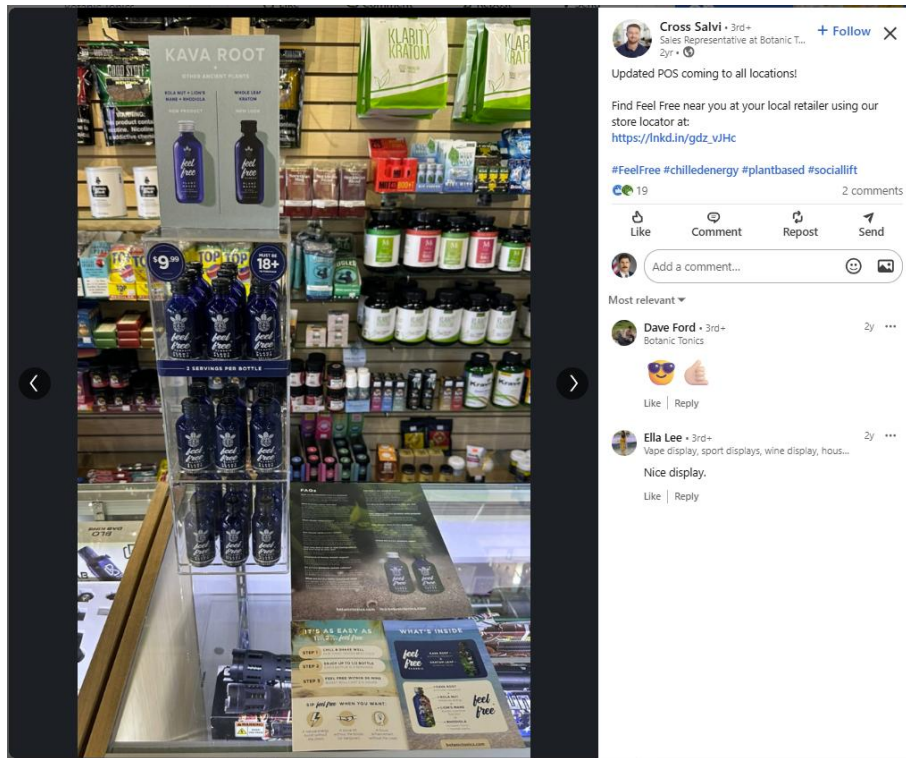
16 48. Defendants changed that entirely in 2020. *Feel free's* ready-to-drink
17 beverages bypassed barriers to entry, enabling people to consume far greater amounts than
18 they previously could and making consumption easier and faster.

19 49. Defendants' placement of *feel free* in the impulse sections of general retail
20 locations brought the product to consumers without alerting them to the risks of the
21 product. *Feel free* kratom drinks were now accessible to casual shoppers who may have
22 had no prior knowledge of the substance. Even today, only 19% of consumers have heard
23 of kratom.

24 50. Beginning in 2020, Defendants transformed kratom from a traditional
25 remedy to a mass-marketed beverage, causing it to reach a broader, less-informed
26 consumer base. *Feel free* is not just a new form of delivery, it is a new industry, delivering
27 fast access and growing through misleading and deceptive marketing.
28

51. Consumers may start using *feel free*, seeking calm, energy, or alcohol alternatives, only to find themselves relying on it daily or experiencing withdrawal without it.

52. Defendants have ensured that *feel free* is placed near checkout stands, which promotes impulse purchases, especially among uninformed consumers.



II. Defendants Knew of *Feel Free*'s Risks Before Launch and Received Increasing Evidence of Those Risks Afterward.

53. Defendant Ross personally developed the formula for *feel free* through years of experimentation with different substances and combinations, including illegal drugs. Ross has stated that he tried “tens of thousands of combinations” over a few years, ultimately combining kratom and kava to achieve the effect he was seeking. Combining kratom and kava into a single product is something that Defendant Ross says, “no one has ever done before.” Ross has described that the combination produces a “euphoric” effect and that the two ingredients have opposing effects—one “uplifting” and the other “downlifting”—that together create what he calls “chilled energy.”

1 **a. Defendants Knew Before *Feel Free* Was Widely Marketed That**
2 **It Could Produce Dependence, Withdrawal, and Other Adverse**
3 **Effects.**

4 54. Prior to launching sales of *feel free* in 2020 and through the present,
5 Defendants have been aware of *feel free*'s risk of addiction, withdrawal, and negative
6 health outcomes.

7 55. Before launching sales in 2020, Defendant Ross intentionally consumed *feel*
8 *free* at what he describes as "abusive levels" to determine the effects. For "three-and-a-
9 half to four months," Ross consumed approximately six bottles per day, explaining that
10 "in the very early stages, because no one had mixed these plants together before [kratom
11 and kava], I purposely did abusive levels" and used the product daily at "very, very high
12 levels" to "see what it would do."

13 56. Through that experience, Ross personally encountered adverse effects from
14 heavy *feel free* use. He has stated that he "felt toxic" while consuming the product at those
15 levels and acknowledged that "if you do too much of it, it's not gonna be good for you"
16 because "the poison's in the dose."

17 57. Ross also personally understood that heavy *feel free* use could produce
18 dependence and withdrawal. Discussing his own heavy use, Ross explained that a user
19 should "taper down off of it" because "if you're going to try something at high levels like
20 that, you don't wanna just abruptly stop." He has since acknowledged that there are
21 legitimate withdrawals from *feel free* and explained that when a user stops taking it,
22 "you're not gonna feel that good" because the user's body chemistry changes and the
23 user's mind will say, "I want that."

24 58. Ross likewise acknowledged that he anticipated from the outset that
25 consumers would abuse *feel free*: "in the very early stages . . . I knew that some people
26 would abuse it. I mean, you can't create something that makes you feel good that
27 somebody's not going to abuse it." Consistent with that acknowledgment, Ross has said
28 that whether *feel free* is addictive is "not the question you should be asking, because that's

1 a given,” stating that anything that “makes you feel good can be habit-forming,” and
2 describing a product with “no habit-forming component” as “a fantasy.”

3 59. Ross has also acknowledged the relationship between the amount of *feel free*
4 consumed and its psychoactive effects. According to Ross, “the more you take, the more
5 euphoric it is,” with increased consumption producing a “much more euphoric feeling.”
6 He has distinguished *feel free* from other purported alcohol replacements because “this
7 one actually works”: “it’s strong” and “does make you feel different than what you felt
8 before you put it in your body.”

9 60. Defendant Ross has further acknowledged the consequences of excessive
10 use, stating that “too much can have negative physical and social consequences” and that
11 “[u]nfortunately, there is no free lunch.” Yet when discussing his knowledge that
12 consumers would abuse the product, Ross stated: “That’s just life, unfortunately.”

13 61. Thus, before Defendants began selling *feel free*, Defendant Ross’s own
14 deliberate, heavy use of the product had given him firsthand experience with its adverse
15 effects and the need to taper rather than abruptly stop using it, and he anticipated that
16 consumers would abuse the product. Defendants nevertheless proceeded to market and
17 sell *feel free* and continue to do so.

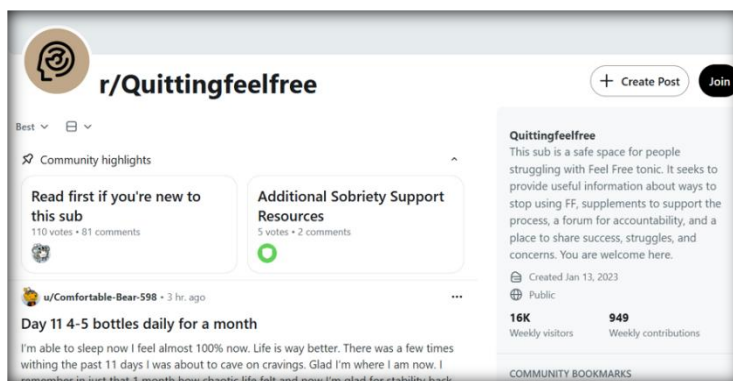
18 62. Defendants also knowingly benefit from consumers’ repeated consumption
19 of *feel free*. As Ross has stated in discussing the product’s habit-forming potential, “if
20 you’re selling something, you’re like, ooh, you know that’s what I want. I want people to
21 buy more of it.”

22 **b. After Launch, Defendants Repeatedly Learned That**
23 **Consumers Were Experiencing Dependence, Withdrawal,**
24 **Escalating Use, and Other Adverse Effects.**

25 63. Defendants received direct reports of *feel free*’s adverse effects from
26 consumers beginning soon after the product’s launch. Starting in 2020, Defendant Ross
27 placed his personal phone number directly on *feel free* packaging and heard directly from
28 consumers about their experiences with the product. On information and belief, the *feel*

1 *free* packaging sold in Arizona included this information, and Defendant Ross thus invited
2 Arizona residents to contact him directly.

3 64. Defendants also monitor online forums where users share their negative
4 experiences with *feel free*, including a Reddit forum devoted to people addicted to *feel*
5 *free* trying to quit—an online support group (<https://www.reddit.com/r/Quittingfeelfree/>).
6 Created in January of 2023, the forum now has approximately 16,000 weekly visitors.
7 Consumers there report needing increasingly high volume of *feel free* to feed their
8 addiction, some needing upwards of 12 bottles per day. They post about how painful and
9 difficult it is to detox from *feel free*, with many stating that a medical detox is required.



17 65. Defendants are aware of consumers’ experiences conveyed on this forum
18 because they monitor it. In one instance, Botanic Tonics responded within minutes after
19 a reporter submitted a post there asking consumers to speak about their experiences with
20 *feel free*.

21 66. Arizona consumers have repeatedly reported serious experiences with *feel*
22 *free* on r/Quittingfeelfree. One Phoenix resident warned another user that “you really can’t
23 stop on your own see if you can go to a detox center....The first 48 hours are hell, there’s
24 no sugar coating it....”

25 67. An Arizona smoke shop owner reported on r/Quittingfeelfree that they
26 “stopped selling Feel Free,” even while continuing to sell other kratom and 7-OH
27 products, because “the Feel Free crowd was the most heavily addicted group BY FAR! I
28

1 saw people lose their lives over that stuff. Many went to rehab, many spent every dime
2 they had....No one needs that kind of “healthy” drink. Way too addictive!”

3 68. A Mesa resident reported on r/Quittingfeelfree that he thought *feel free*
4 would help him stay sober after his alcohol addiction, but experienced severe withdrawal
5 when quitting *feel free*, stating that the “first four days are horrible,” and left him
6 “suicidal.”

7 69. Another Phoenix poster suggested a medical detox, describing that a doctor
8 treated withdrawal from a 10-12 *feel free*-per-day addiction with suboxone (a prescription
9 medication used to treat opioid use disorder), a muscle relaxer, and gabapentin (used for
10 seizures).

11 70. Another Arizona poster expressed sadness and confusion at their inability
12 to kick their *feel free* addiction: “I bought my third today, drank it and immediately started
13 crying thinking of how every dollar I am spending on this...is taking away from my sons
14 Christmas.” In a separate post, the same Arizona user expressed quickly going from one
15 *feel free* every couple of days to one per day to multiple per day because of “diminishing
16 returns,” causing them to increase their use, just like they “used to do with alcohol.” This
17 consumer reported being so desperate to feed their addiction that they contemplated
18 stealing *feel free* off the Circle K counter when it was left unattended, despite never having
19 stolen anything in their life.” This consumer reported that during withdrawal they
20 experienced anxiety and insomnia, and that it makes their “body feel like it[']s burning
21 from the inside,” leaving them unable to work, as they “work in the heat in Arizona and
22 really can[']t deal with feeling sweats and that burning feeling doing my job.”

23 71. Another r/Quittingfeelfree poster similarly mentioned the Arizona heat
24 worsening the withdrawal from *feel free*, also mentioning hives, itching, and insomnia.

25 72. Another Arizona user posted on r/Quittingfeelfree that: “The longest I’ve
26 made it is two weeks before backsliding. I hate that there are Circle K’s on every corner
27 in Arizona. [It] is ruining my life and making me broke....”
28

73. Defendants have received similar reports through Better Business Bureau (“BBB”) complaints and reviews, which Defendants monitor and to which they respond.

74. For example, on October 13, 2023, one user posted a BBB comment that *feel free* “will ruin your life.... I found myself drinking 4-7 bottles a day. That’s how addictive this stuff is. It ruins your social life, will to be outside, dry skin, dry hands, styes pimples in your eyes, 24/7 ear ringing, nausea, tight and umhumanlike skin, dark sagging and filled in eyes, and the withdrawals is equivalent to getting off an opioid.”

75. Defendant Botanic Tonics responded three days after the October 13, 2023 post, demonstrating awareness of BBB posts. It callously replied: “Sorry to hear you are having issues in your life. Unless you are sharing with friends and family based on our review of your online ordering history it seems you are consuming more than we recommend. Any substance that is abused can cause issues. An extreme example of this is that you can OD if you consume too much water.”

76. That response demonstrates that Defendants have the ability to monitor consumers’ purchase history and are aware of consumers purchasing at levels indicative of abuse.

77. Other consumers have repeatedly provided Defendants with similar notice through BBB. In March 2024, a consumer described *feel free* as, “[h]ighly addictive,” reported escalating to three or four bottles per day, and stated that after a year of use the consumer experienced severe withdrawal upon quitting.

78. In April 2024, another user commented on BBB that: “I had a horrible experience with this product. I should have done further research before consuming a small sip (horrible taste) due to this product being in the opiate family. I cannot believe this was given out as a free sample.... I am allergic to opiates/cannot and do not want to take them for pain and violently vomited 10 times after consuming this product, had a fever, was dehydrated for 2 days (received IV fluids...).”

79. And in January 2024 another user commented on BBB that: “I too fell victim to it and thank the powers that be that I was able to free myself from the bondage.... It’s

1 like buying opiates at your local grocery/convenience store! I had to go to urgent care for
2 withdrawal symptoms and they didn't even know what Kratom was! So I wasn't even
3 taken seriously! This product drained my bank account and also stole a year of my
4 life!"

5 80. Thus, in addition to Ross's own pre-launch experiences with heavy *feel free*
6 use, Defendants have repeatedly received post-launch reports from consumers—including
7 consumers in Arizona—describing escalating consumption, dependence, severe
8 withdrawal, financial and social consequences, and the need for medical detoxification or
9 rehabilitation.

10 **III. Despite Their Knowledge of *Feel Free*'s Risks, Defendants Unfairly and**
11 **Deceptively Marketed the Product in Ways That Obscured Its Nature and**
12 **Risks.**

13 **a. Defendants Deceptively Obscured *Feel Free*'s Kratom Content**
14 **and Failed to Adequately Disclose Its Risks of Dependence,**
15 **Withdrawal, and Other Material Adverse Effects.**

16 81. From approximately 2020 through the present, Defendants have deceptively
17 marketed *feel free* as safe, obscuring its risks of negative health outcomes and addiction
18 by: advertising it as a kava drink, not a kratom drink; advertising it as safe and free from
19 side effects; likening it to sugar or caffeine; and failing to disclose known health risks.
20 Defendants have deceptively and unfairly obscured that *feel free* is a dangerous product
21 that will get consumers high, cause addiction, and cause negative health outcomes.

22 82. Defendants' marketing describes *feel free* as a "kava drink" made with kava
23 and "other ancient plants." Instead of mentioning kratom in its description of the product,
24 Defendants deceptively hide its presence in the reference to "other ancient plants."
25 Describing *feel free* as a kava drink is akin to describing a gin and tonic simply as a tonic.

26 83. Throughout *feel free*'s existence, Defendants have repeatedly emphasized
27 kava while omitting kratom from their descriptions of the product. Marketing materials
28 posted on the Botanic Tonics Website contain over 75 examples of headlines that refer

exclusively to kava, not mentioning kratom.¹ For example: “First Time Trying Kava? feel free is Here to Help”²; “Redefine Your Life with Kava and feel free”³; and “3 Times When You’ll Want to Reach for a Kava Tonic.”⁴

¹ See, e.g., Jamal Bouie, *Does Kava Expire? What You Need to Know*, Botanic Tonics (Aug. 21, 2024), <https://botanictonics.com/blogs/botanic-secrets/does-kava-expire-what-you-need-to-know>; Jamal Bouie, *What is a Kava Bar? Explained*, Botanic Tonics (Mar. 24, 2023), <https://botanictonics.com/blogs/botanic-secrets/what-is-a-kava-bar-explained-botanic-tonics>; Jamal Bouie, *What is a Kava Bowl: Explained*, Botanic Tonics (May 17, 2023), <https://botanictonics.com/blogs/botanic-secrets/what-is-a-kava-bowl-explained-botanic-tonics>; Jamal Bouie, *Kava Recipes: 5 Delicious Recipes To Try*, Botanic Tonics (July 18, 2024), <https://botanictonics.com/blogs/botanic-secrets/kava-recipes-5-delicious-recipes-to-try-botanic-tonics>; Jamal Bouie, *Making Kava Social Tonic Part of Your Lifestyle*, Botanic Tonics (Feb. 4, 2025), <https://botanictonics.com/blogs/botanic-secrets/making-kava-social- tonic-part-of-your-lifestyle>; Jamal Bouie, *How to Store Kava Properly*, Botanic Tonics (Aug. 21, 2024), <https://botanictonics.com/blogs/botanic-secrets/how-to-store-kava-properly>; Jamal Bouie, *Crush Your Fitness Goals with Kava Kava*, Botanic Tonics (Feb. 7, 2022), <https://botanictonics.com/blogs/botanic-secrets/crush-your-fitness-goals-with-kava-kava>; Jamal Bouie, *The 5 Top Relaxing Activities That Pair Well with Kava Kava*, Botanic Tonics (Nov. 25, 2021), <https://botanictonics.com/blogs/botanic-secrets/the-5-top-relaxing-activities-that-pair-well-with-kava-kava>; Jamal Bouie, *Find Your Productive Workflow with Kava*, Botanic Tonics (Jan. 3, 2022), <https://botanictonics.com/blogs/botanic-secrets/find-your-productive-workflow-with-kava>; Jamal Bouie, *A Kava Adventure: 4 Vacation Destinations Where You Can Find Kava*, Botanic Tonics (July 25, 2022), <https://botanictonics.com/blogs/botanic-secrets/a-kava-adventure-4-vacation-destinations-where-you-can-find-kava>; Jamal Bouie, *Visit Vanuatu Our Journey to Kava*, Botanic Tonics (Mar. 14, 2023), <https://botanictonics.com/blogs/botanic-secrets/visit-vanuatu-our-journey-to-kava-botanic-tonics>; Jamal Bouie, *How to Prepare Kava: A Step-by-Step Guide*, Botanic Tonics (May 18, 2023), <https://botanictonics.com/blogs/botanic-secrets/how-to-prepare-kava-a-step-by-step-guide-botanic-tonics>; Jamal Bouie, *Micronized Kava vs Traditional Kava*, Botanic Tonics (June 7, 2023), <https://botanictonics.com/blogs/botanic-secrets/micronized-kava-vs-traditional-kava-botanic-tonics>; Jamal Bouie, *What is Kava Tea?*, Botanic Tonics (July 18, 2023), <https://botanictonics.com/blogs/botanic-secrets/what-is-kava-tea-botanic-tonics>; Jamal Bouie, *How to Make Kava Taste Better*, Botanic Tonics (Aug. 17, 2023), <https://botanictonics.com/blogs/botanic-secrets/how-to-make-kava-taste-better-botanic-tonics>; Jamal Bouie, *Kava Calories: How Many Does it Have?*, Botanic Tonics (Aug. 17, 2023), <https://botanictonics.com/blogs/botanic-secrets/kava-calories-how-many-does-it-have-botanic-tonics>; Jamal Bouie, *Kava Ceremony Traditions and Rituals*, Botanic Tonics (Feb. 22, 2024), <https://botanictonics.com/blogs/botanic-secrets/kava-ceremony->

1 84. Defendants obscure *feel free*'s kratom content despite knowing that kratom
2 carries negative connotations that may affect consumers' willingness to purchase the
3 product, while consumers are less wary of kava. One study, for example indicates that
4 consumers do not have a negative association with kava, and perceive it as having "few
5 risks or adverse effects."

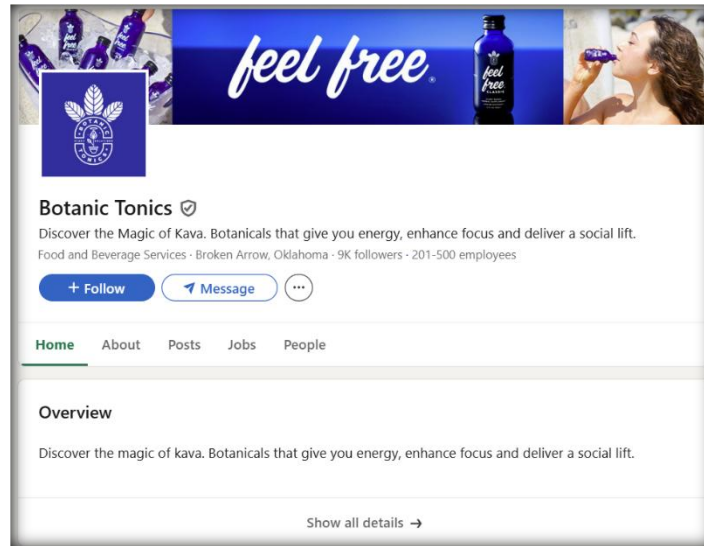
6 85. Defendant Botanic Tonics' current LinkedIn landing page invites
7 consumers to "Discover the Magic of Kava," and uses *feel free* bottle images with no
8 reference to kratom:

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17 traditions-and-rituals-botanic-tonics; Jamal Bouie, *Exploring Vanuatu's Kava*
18 *Ceremonies: A Tradition of Unity and Calm*, Botanic Tonics (Feb. 4, 2025),
19 [https://botanictonics.com/blogs/botanic-secrets/exploring-vanuatus-kava-ceremonies-a-](https://botanictonics.com/blogs/botanic-secrets/exploring-vanuatus-kava-ceremonies-a-tradition-of-unity-and-calm)
20 [tradition-of-unity-and-calm](https://botanictonics.com/blogs/botanic-secrets/exploring-vanuatus-kava-ceremonies-a-tradition-of-unity-and-calm); Jamal Bouie, *Find Kava Near Me*, Botanic Tonics (Feb. 4,
21 *2025), [https://botanictonics.com/blogs/botanic-secrets/find-kava-near-me-feel-free-kava-](https://botanictonics.com/blogs/botanic-secrets/find-kava-near-me-feel-free-kava-tonics-a-guide-to-finding-kava-near-you)*
22 *tonics-a-guide-to-finding-kava-near-you*; Jamal Bouie, *Kava and Chill: Relaxation for*
23 *Your Next Streaming Session*, Botanic Tonics (Feb. 4, 2025),
24 [https://botanictonics.com/blogs/botanic-secrets/kava-and-chill-relaxation-for-your-next-](https://botanictonics.com/blogs/botanic-secrets/kava-and-chill-relaxation-for-your-next-streaming-session)
25 [streaming-session](https://botanictonics.com/blogs/botanic-secrets/kava-and-chill-relaxation-for-your-next-streaming-session).

26 ² Jamal Bouie, *First Time Trying Kava? feel free is Here to Help*, Botanic Tonics (Aug.
27 28, 2021), [https://botanictonics.com/blogs/botanic-secrets/ready-to-try-kava-botanic-](https://botanictonics.com/blogs/botanic-secrets/ready-to-try-kava-botanic-tonics-has-what-you-re-looking-for-first-time-trying-kava-botanic-tonics-is-here-to-help)
28 [tonics-has-what-you-re-looking-for-first-time-trying-kava-botanic-tonics-is-here-to-help](https://botanictonics.com/blogs/botanic-secrets/ready-to-try-kava-botanic-tonics-has-what-you-re-looking-for-first-time-trying-kava-botanic-tonics-is-here-to-help)

³ Jamal Bouie, *Redefine Your Life with Kava and feel free*, Botanic Tonics (Sept. 22, 2021),
[https://botanictonics.com/blogs/botanic-secrets/redefine-your-life-with-kava-botanic-](https://botanictonics.com/blogs/botanic-secrets/redefine-your-life-with-kava-botanic-tonics)
[tonics](https://botanictonics.com/blogs/botanic-secrets/redefine-your-life-with-kava-botanic-tonics)

⁴ Jamal Bouie, *3 Times When You'll Want to Reach for a Kava Tonic*, Botanic Tonics (July
26, 2022), [https://botanictonics.com/blogs/botanic-secrets/3-times-when-youll-want-to-](https://botanictonics.com/blogs/botanic-secrets/3-times-when-youll-want-to-reach-for-a-kava-tonic)
[reach-for-a-kava-tonic](https://botanictonics.com/blogs/botanic-secrets/3-times-when-youll-want-to-reach-for-a-kava-tonic)



86. Defendants similarly market *feel free* on their website, www.botanictonics.com, as “[t]houghtfully crafted kava-centric supplements for mood lift + energy + focus.”

87. By repeatedly presenting *feel free* as a kava product without similarly identifying its kratom content, Defendants create the misleading impression that *feel free* presents the risks associated with kava rather than the materially different risks associated with a product containing kratom.

88. Defendants also market the product as safe and Defendants’ marketing materials deceptively state that *feel free* has “no negative health problems.”

89. Defendants have further represented that consumers need not worry about side effects because *feel free* is “made with kava and other ancient plants.” Defendants deceptively market the product as safe by telling consumers that kava has been used for centuries without issue. Botanic Tonics states in marketing materials (emphasis added):

Kava has been enjoyed by cultures throughout the South Pacific for generations. They’ve used it as a social drink and in all kinds of rituals—including celebrating new leaders, weddings, and cultural holidays. Because kava has been incorporated into drinks for so long, its history is relatively well documented. That includes its safety. **When you enjoy a kava drink, you don’t have to worry about side effects. The same can be said of Botanic Tonics’ kava drink, the Feel Free Wellness Tonic.** It’s made with

1 kava and other ancient plants, so when you enjoy it as a shot, you can just
2 kick back and relax.

3 90. These representations are false and misleading. *Feel free* can cause adverse
4 effects, and Defendants’ reliance on the history and purported safety of traditional kava
5 use obscures the fact that *feel free* also contains kratom, which has known risks of negative
6 health outcomes and addiction.

7 91. Defendants have also denied specific risks associated with *feel free*. For
8 example, Defendant Ross falsely stated in a podcast on June 23, 2023 that kratom is not a
9 “respiratory suppressant.”

10 92. Defendants further minimize *feel free*’s dependence and addiction risks by
11 comparing its use to commonplace substances—saying it is “just like sugar or caffeine.”

12 93. For example, Defendants’ marketing materials state: “As an ingredient in
13 tea or Botanic Tonics’ Feel Free Wellness Tonic, kava isn’t addictive. But it’s important
14 to remember that anything that helps you feel good can influence some level of
15 dependence. Think sugar or caffeine. Many of us enjoy these substances every day. You
16 may enjoy the sweetness that sugar adds to your favorite drinks or desserts. You may love
17 the way caffeine wakes you up in the morning. And you may find that you love how Feel
18 Free Wellness Tonic makes you feel at the end of a long week. That feeling of bliss and
19 relaxation can be a powerful one! Just like sugar or caffeine, you can get the most out of
20 Botanic Tonics’ Feel Free Wellness Tonic when you enjoy it in moderation.”

21 94. Comparing *feel free*’s dependence risks to sugar and caffeine minimizes the
22 nature and severity of those risks and creates the misleading impression that they are
23 comparable to risks consumers routinely accept from ordinary consumption of sugar or
24 caffeine.

25 95. Defendants Ross and Botanic Tonics have similarly minimized the risks of
26 excessive *feel free* consumption by asserting that too much of anything can be harmful,
27 including by comparing excessive *feel free* consumption to drinking excessive amounts of
28 water.

1 96. At the same time, Defendants Ross and Botanic Tonics have been aware of
2 material adverse health effects associated with *feel free* that they have failed to disclose to
3 consumers.

4 97. For example, Ross has acknowledged that *feel free* suppresses appetite and
5 can lead to weight loss—stating on September 26, 2022 that “[w]e have people all the time
6 talking about, you know, they drop 5 pounds, 10 pounds, 15 pounds. It definitely does
7 suppress your appetite.”

8 98. Ross has also acknowledged *feel free*’s diuretic effect, and on December 6,
9 2022, advised users to consume additional water as a result. Yet that advice does not appear
10 on the product or in other marketing materials.

11 99. Ross likewise acknowledged on December 6, 2022 that *feel free* slows the
12 digestive tract, stating that “[i]t definitely changes up digestion a little bit,” “there does
13 seem to be maybe a slowing of the digestive tract.”

14 100. Ross has also acknowledged that *feel free* has stronger effects when
15 consumed on an empty stomach, stating that: “it will be stronger if you do it on an empty
16 stomach versus having some food. We recommend most people to do it, like, an hour or
17 so after having a meal.” Yet that advice does not appear on the product or in Defendants’
18 other marketing materials.

19 101. Defendants likewise fail to adequately disclose other material health risks
20 associated with *feel free* and its ingredients, including liver toxicity, seizures, substance
21 use disorder, death, respiratory depression, rapid heart rate, high blood pressure, vomiting,
22 hallucinations, delusions, cardiac or respiratory arrest, coma, constipation, dizziness,
23 drowsiness, depression, confusion, and tremors.

24 **b. Defendants Unfairly and Deceptively Presented *Feel Free* as a**
25 **Benign Energy Product Despite Its Materially Different Risks.**

26 102. From 2020 through the present, Defendants have disguised the harm of *feel*
27 *free* by making it similar in appearance to 5-hour Energy shots and have been selling *feel*
28 *free* in the same location in the same stores, misleading consumers into thinking the product

1 is something other than an opioid or opioid-like substance. This exploits consumers'
2 familiarity and comfort with 5-hour Energy.

3 103. Defendant Ross explained that these choices were intentional: "The impulse
4 section," "That's at the counter or, you know, or going right to the counter. That's where
5 the real volume moves. Uh, 'cause a lot of times it's someone, I've caught myself doing
6 this, you're standing there waiting to get checked out, and you look at something, you're
7 like, 'Oh,' and you grab that. You didn't go in there for that. But it looks good, you know,
8 it's sitting right there, and you're, you're, you know, you're trying to kill time, and you
9 grab it, and you try it. 'Ooh, I like that.' Now you're a regular customer.... And I, I would
10 say that the company that really mastered that or figured it out first was 5-hour Energy. 5-
11 hour ...mastered putting a little rack right by the register...."

12 104. Defendants also prioritized making *feel free* available in convenience stores
13 because, as Defendant Ross described, convenience stores move "tremendous volume,"
14 because construction workers are "stopping there in the morning...they're probably
15 coming back, in some cases at noon and at the end of the day, too. They're there multiple
16 times a day....they're grabbing a six-pack or 12-pack or whatever, you know, on the way
17 home." And because "[t]he energy drinks, the tobacco, the alcohol, those are what are the
18 big drivers in convenience stores."

19 105. Because the product looks like another energy drink that consumers are used
20 to seeing at convenience stores, it can minimize the chance they question what *feel free*
21 really is. Selling *feel free* in locations moving high volumes of alcohol also creates a
22 pathway to even more dangerous polysubstance use, a danger Defendants are well aware
23 of, with Defendant Ross stating that *feel free* amplifies whatever you have with it,
24 particularly acknowledging alcohol as dangerous in combination.

25 106. Defendants make their bottle the same 2-ounce size and the same shape as 5-
26 hour Energy.



107. Defendants sell them side-by-side in gas stations and convenience stores.



108. Defendants provide stores with display cases that have individual holes for each bottle, which fit both *feel free* and 5-hour Energy. The image above shows both *feel free* and 5-hour Energy in the same display case provided by Defendants.

109. Defendants advertise *feel free* as an energy boost:



110. Defendants invite consumers to “free up your energy with *feel free*.”

111. Like 5-hour Energy, Defendants market their product as long-term energy, distinguishing it from the short-term energy boost provided by coffee: “[w]hile a shot of espresso or a candy bar can spike energy in the short term, they typically tank energy shortly after, leaving you more tired than before.” Defendants’ marketing materials invite users to: “avoid a caffeine crash...bounce through your afternoon with *feel free*,” and “[f]end off that dreaded afternoon slump with Botanic Tonics.” Defendants also market their product by saying it does not “require waiting in a queue at your local coffee shop.”

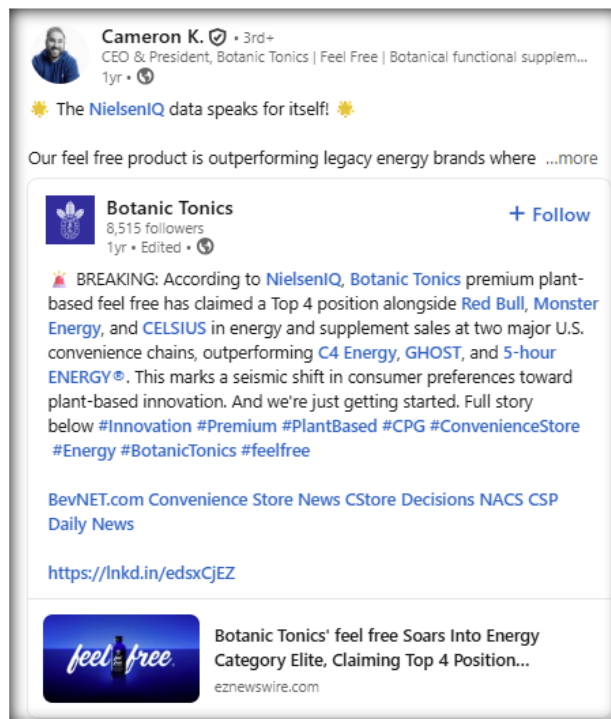
112. Defendants advertise *feel free* as “a more natural way to stay energized.” Stating in marketing materials, that “[i]f you’re looking for a pick-me-up fueled by plants, a *feel free* CLASSIC kava tonic can help give you a lift.”

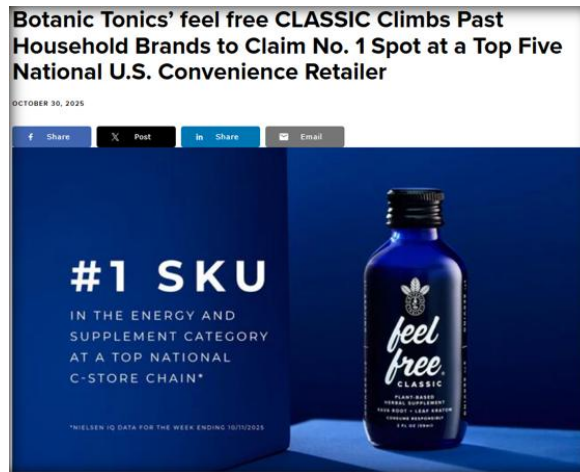
113. Kratom’s effect on the human brain makes Defendants’ actions particularly dangerous, because, at low doses, kratom acts as a stimulant. And at higher doses, it acts as an opioid. So, if users first try a small amount, it might feel like an energy drink, lulling them into a false sense of familiarity. When they drink more, the opioid-like effects become more pronounced.

114. The problem is worsened because Botanic Tonics claims that *feel free*’s tiny two-ounce bottle is actually two servings, though they know or should know that consumers will drink the whole bottle.

115. Defendants have chillingly referenced the Paracelsian Principle, that “all things are poison and nothing is without poison; only the dose makes a thing not a poison.” Ross alluded to the same concept in a December 6, 2022 podcast appearance, stating that “the poison’s in the dose.” At once, Botanic Tonics admits that *feel free* is a poison, but seeks absolution by pretending that a dose is only a half of its tiny two-ounce bottle. In embracing the principle, Defendants know that *feel free* is poisoning Arizonans drinking multiple bottles a day.

116. Defendants’ marketing of *feel free* as an energy drink has brought them great financial success, with *feel free* now outselling 5-hour Energy, and sitting among the top-three best-selling “energy drinks” alongside Red Bull and Monster:





117. It is unlikely that *feel free* flew past other energy drinks because of its superior flavor. In fact, Defendant Ross admits that the product does not taste good, and he himself only began tolerating the taste once he began associating the taste with how good the product made him feel, likening it to gin.

118. Defendants' success can instead be attributed to the fact that they sell the only product marketed as an energy drink that contains an addictive opioid or opioid-like substance.

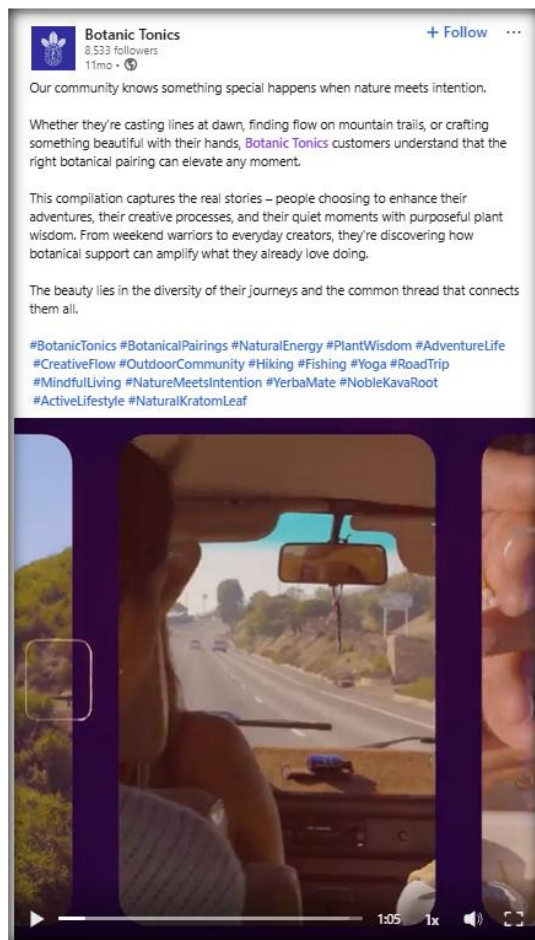
119. In their attempt to hide the presence of kratom in *feel free*, Defendants falsely advertise that *the kava* in their product gives consumers the energy boost: "At *feel free*, we've utilized traditional natural substances, like kava, to create our *feel free* CLASSIC tonic and *feel free* capsules. Either choice will give you the all-natural energy you crave, on the occasions that you need it." That is deceptive because kava is a depressant—it slows down your central nervous system. If anything in *feel free* is having a stimulant effect, it is the kratom, which is a stimulant at low doses.

120. Selling a product that looks like a 5-hour Energy shot in the same place 5-hour Energy is sold deceptively and unfairly exploits consumers' ignorance to the dangers of *feel free*. This allowed for rapid sales growth of the product.

121. Defendants further give a false impression of safety by advertising that it is safe to use *feel free* prior to driving a car or using power tools. *Feel free* can lead to impairment including sedative effects, and impaired driving is a crime in Arizona.

122. Marketing materials, from at least 2022 to the present, deceptively convey safety by encouraging consumers to drive cars and motorcycles and use power tools while on *feel free*.

123. This still image from a *feel free* ad on LinkedIn shows a *feel free* bottle on a driver's dashboard, and the video includes multiple shots of driving cars and riding motorcycles:



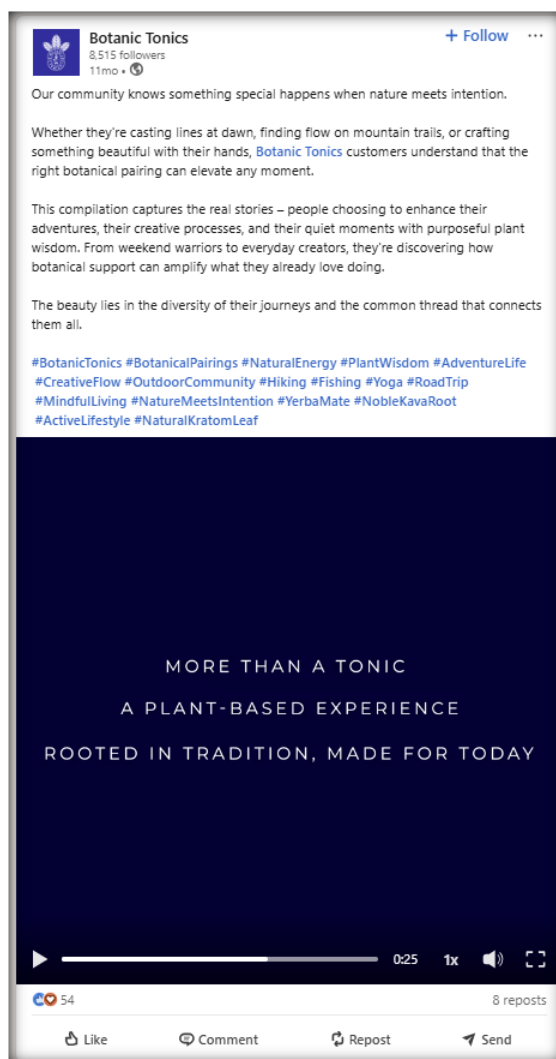
124. In an Instagram ad, Defendants posted: “Daily reminder to go on a road trip with your favorite humans. Don’t forget to bring your favorite #alcoholalternative for the road. Sip it anytime of day. ✨ Tag your fav road trip buddy to get a couple *feel free* shots for your trip.”

125. Defendants’ advertising also encourages consumers to undertake other activities that can be unsafe while under the influence of *feel free*, including mountain biking, operating a potter’s wheel, operating a power drill into stone, using a power saw,

and operating a leather press machine, all without warning about *feel free*'s opioid-like effects, including its sedative effects.

c. Defendants Unfairly and Deceptively Created a Health-and-Wellness Halo Around *Feel Free* Through “Natural,” Fitness, and Athletic Marketing.

126. From 2020 through the present, Defendants have unfairly and deceptively marketed *feel free* to make the product look harmless—like a wellness product, focusing on the product being “plant based” and “natural” to give the false impression that it is good for you, even a fitness product.

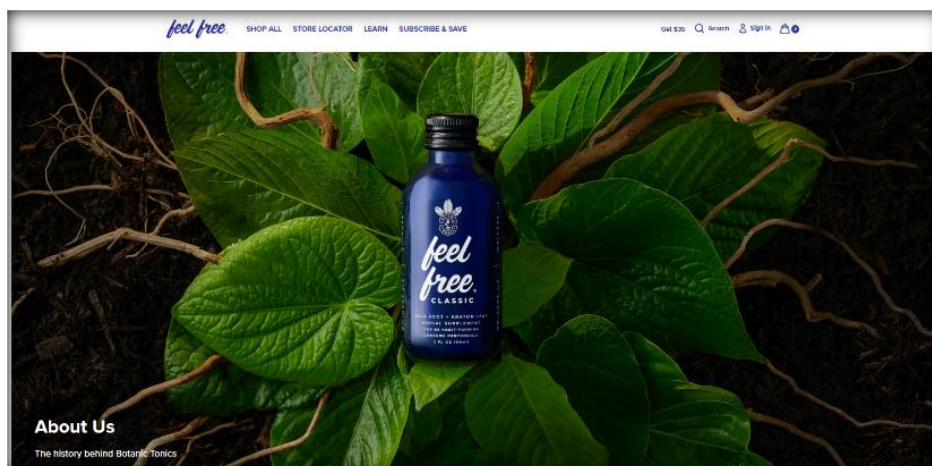


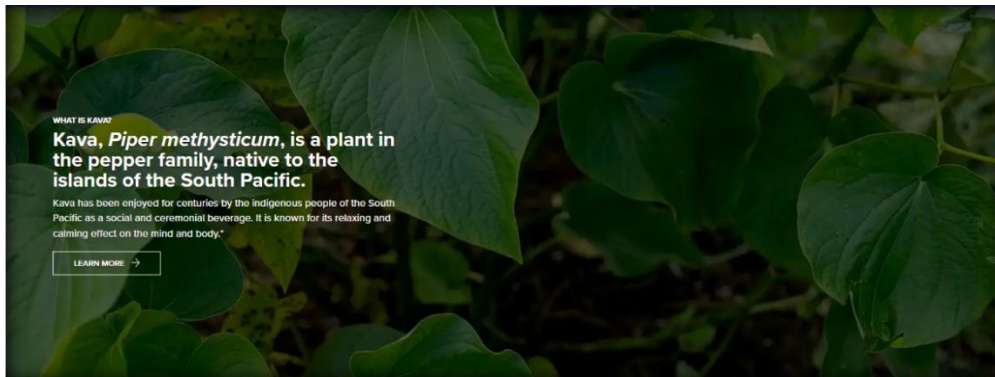


127. Marketing *feel free* as “natural” or “plant-based” exploits the “health-halo effect,” which is the tendency to associate such labels with safety and wellness. Defendants’ creation of a health-halo effect around *feel free* can lead consumers to underestimate the risks associated with the product, falsely believing that “natural” means safer. This naturalistic fallacy obscures the fact that mitragynine and 7-OH, the active compounds in *feel free*’s kratom, engage opioid receptors and can lead to tolerance, addiction, and withdrawal.

128. The FDA warned against this type of marketing starting in 2018, stating that “claiming that kratom is benign because it is ‘just a plant’ is shortsighted and dangerous....[a]s the scientific data and adverse event reports have clearly revealed, compounds in kratom make it so it isn’t just a plant—it’s an opioid.”

129. Yet, Defendants have gone all in on this approach, making plant imagery central to Defendants’ marketing materials and website.





130. The brand's name, Botanic Tonics, creates the implication that it is both natural and has a medicinal purpose. The blue bottle with the flowing lowercase font mimics common wellness products, and the inclusion of leaves in the logo gives consumers the further indication that the product comes from plants.

131. Defendants' product packaging utilizes "Plant Based" messaging. From approximately 2020 through at least 2024, the product description on the *feel free* bottle only identified *feel free* as a "PLANT BASED HERBAL SUPPLEMENT":



132. Defendants’ marketing materials state that “[p]owerful plants and natural solutions have shaped cultures for centuries.... As more people look to incorporate nature into their lives, herbal supplements like kava are gaining momentum.” They identify that one of Defendants’ core beliefs is “Embracing the Power of Plants: We think mother nature does it best. Plants have been traditionally used around the globe for centuries.”

133. Defendants’ marketing materials also present *feel free* as a wellness product: “In today’s crowded wellness world, consumers want more than quick fixes and flashy branding—they want real answers, clean ingredients, and brands that value their well-being.”

134. Defendants’ marketing ties the product to mental and physical wellness activities, like yoga, including by describing *feel free* as a “heart opener,” a popular wellness phrase borrowed from yoga. And Defendants’ marketing materials are replete with images of yoga and meditation:





How to Begin Meditation

September 13, 2024

Meditation is a powerful practice that can significantly enhance both mental and physical well-being. Whether you're looking to reduce stress, improve focus, or simply find a sense of peace in...



135. Defendants also market *feel free* as a wellness product by drawing a distinction between *feel free* and alcohol, portraying alcohol as processed, making it bad for you, whereas *feel free* is plant-based and natural.

136. Defendants' marketing of *feel free* as natural and non-synthetic further deceives wellness-seeking consumers because *feel free* contains synthetic kava.

137. Defendants' marketing materials state that Defendant Botanic Tonics never uses synthetic ingredients, instead it leans into "botanic solutions, never lab-produced synthetic options."

Our Core Beliefs

01

Focus on What's Important

We believe being present is powerful, but today it's a hard habit to keep. We exist to help people make the most of the moments that matter—to reset, re-think, and then re-engage with their self, others, and the world around them.

02

Respect Tradition

We believe the magic of kava isn't just in the properties of the plant, it's the people who have grown and enjoyed it for thousands of years. So we pay homage to, and celebrate, the indigenous farmers we work with and source from.

03

Embrace the Power of Plants

We think Mother Nature does it best. Plants have been traditionally used around the globe for centuries. We lean into botanical solutions, never lab-produced synthetic options.

138. However, Defendants use synthetic kava in *feel free*. They have a process patent for a method of extracting flavonoid A and flavonoid B from kava, substances that can be toxic to some people.

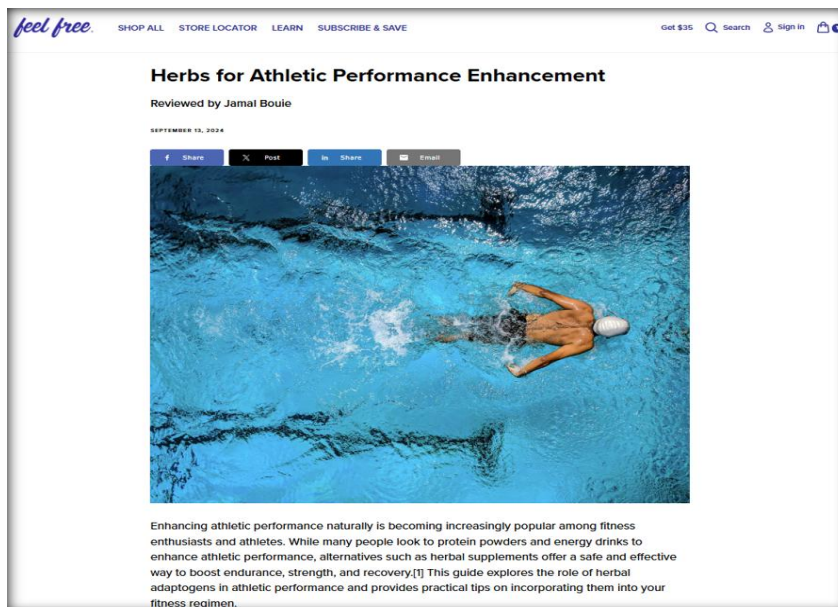
139. On or about May 20, 2022, Defendant Ross stated that “[y]ou can’t patent plants, but you can patent formulas that are synthetic.” By Defendant Ross’s own definition, *feel free* contains synthetic ingredients.

140. In a marketing appearance on May 20, 2022, Defendant Ross stated that *feel free* is unlike products that use synthetic ingredients, stating that “nature made these things where they’re balanced to where you can’t consume too much of it, and here we come along and start messing with it, and no wonder we have the problems we have.”

141. In creating synthetic kava and using it in *feel free*, that is exactly what Defendants have done. According to Defendant Ross, naturally occurring kava has elements that make overuse less likely; Defendants removed those elements, creating synthetic kava, which it uses in *feel free*.

142. Defendants engaged in deceptive and misleading marketing of *feel free* as a natural wellness product, while selling synthetic products.

143. From approximately 2020 through the present, Defendants have deceptively marketed *feel free* as a fitness product, despite its serious negative effects on the body, selling it at gyms, spas, and chiropractic offices.



1 144. Defendants promote it for use before a workout, claiming it creates a desire
2 to work out, and makes workouts “incredible.” They advertise that *feel free* can “help
3 sports performance,” by boosting “endurance and focus.” They market *feel free* for
4 “athletic performance enhancement,” and “leveling up your game with *feel free*.”
5 Advertisements feature athletes playing baseball and golf, and some feature the text
6 “Natural Energy for All Stars.”

7 145. One *feel free* advertisement featuring professional golfer Blair O’Neal
8 mentions that she golfed for Arizona State University. O’Neal states in an advertisement
9 that “I love it because it helps me get to the next level. It helps me stay in the moment,
10 which is really important when you’re on the golf course.”

11 146. Defendants’ marketing states that it’s “the official tonic of three different
12 major universities’ athletic departments.” And that “a lot of amateur and professional
13 athletes are using this while performing or pre-workout.”

14 147. The U.S. Anti-Doping Agency does not prohibit *feel free* in sports (which it
15 could if it were a performance enhancer), but it does warn athletes “to steer clear of kratom
16 for health reasons.”

17 **d. Defendants Deceptively and Unfairly Have Marketed *Feel Free***
18 **as an Alcohol Replacement and Sobriety Alternative Without**
19 **Adequately Disclosing Its Dependence and Withdrawal Risks.**

20 148. Defendants promoted *feel free* to consumers affirmatively seeking to avoid
21 alcohol without adequately disclosing that *feel free* itself presents addiction and withdrawal
22 risks.

23 **1. Defendants Targeted Consumers Seeking to Stop or**
24 **Reduce Their Alcohol Consumption.**

25 149. From 2020 through the present, Defendants advertised *feel free* as an alcohol
26 replacement, and targeted vulnerable consumers, like those struggling with sobriety. They
27 advertised *feel free* as a safe, sober, and healthy alternative to alcohol, paying influencers
28 to promote it as such on social media, like Instagram and TikTok.

150. Defendants have utilized targeted advertising on social media to reach their desired customer base, which included individuals who had battled with addiction in the past. Defendants paid influencers to post videos of themselves drinking *feel free* and referring to it as an effective way to quit drinking or stay sober, using the hashtag #alcoholalternative.

151. Defendants also have used podcast appearances to target specific demographics, with Ross stating that, with podcasts, listeners “don’t feel like it’s a commercial. They feel like it’s someone trying to give some real information.” Defendants know that the podcast appearances are “incredibly successful” advertising tools, because they track purchases made using unique 40% off discount codes that they provide to the listeners on each podcast. Defendants also ran paid advertisements on targeted podcasts, like *The Skinny Confidential*, and in marketing, touted the product being mentioned on popular podcasts like *The Joe Rogan Experience*, *The Skinny Confidential*, and *The Always Sunny in Philadelphia Podcast*.

152. Defendants marketed the product as an “alcohol replacement,” and a “social lubricant.” In podcast marketing appearances, Defendant Ross touted *feel free* as the way that he overcame his own alcohol addiction. In one such appearance, *Feel free* was referred to as “a really great alcohol substitute.” Defendants also tout its lack of a hangover.



153. Defendants market it as an “alcohol-free social lift.”



154. Defendants posted over 1,000 Instagram ads targeted at consumers suffering from alcohol addiction, deceptively presenting *feel free* as a safe way to quit drinking, with messages including “Life without alcohol allows you to feel free,” and “A new way to cheers - anytime, anywhere.” Defendants particularly targeted these messages around the holidays, with advertisements like “You have a choice - ditch the alcohol this holiday season. ✨”; “Cheers to not drinking this holiday season ✨”; “New year, new me. Ditch the alcohol this year.”; and “Our tonic is plant-based alternative to all of those habits you need to replace 🌱 ✨ who else agrees?”

155. These ads are even more harmful to consumers struggling with alcohol addiction because Defendants tell them that *feel free* will not induce dependence, that it is no more addictive than sugar or caffeine, that *feel free* is supportive of sobriety, and that it is not habit-forming.

156. Marketing *feel free*, an addictive opioid or opioid-like substance, as a safe and sober alternative to alcohol is deceptive and unfair, and it exploits consumers’ desire for psychoactive effects without running afoul of their sobriety. It is particularly unfair to promote an addictive drug to individuals in recovery because it can open the door to relapse or lead to the development of cross-dependency.

157. Unfortunately, Defendants’ deceptive and unfair strategy has worked, with Ross reporting on a May 20, 2022 podcast appearance that people experiencing alcohol issues are “one of the main customer bases” for *feel free*. Many could be replacing one addiction with another or simply adding another addiction.

1 **2. Defendants Extended the Same Marketing Strategy to**
2 **“Sober Curious” and Younger Consumers.**

3 158. Defendants have used similar marketing tactics to appeal to the “sober
4 curious,” marketing *feel free* as an alcohol alternative.

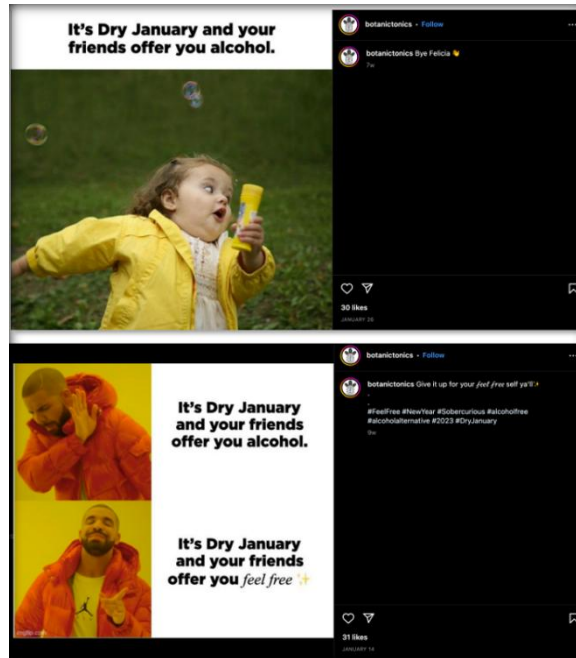
5 159. Individuals born between 1997 and 2012 (“Gen Z”) are drinking significantly
6 less alcohol than prior generations and spearheading the “sober curious” movement, in
7 many instances to improve mental health outcomes. 43% of Gen Z are more likely to try a
8 new drink if it’s marketed to align with a “sober curious lifestyle.” Defendants know this,
9 with Defendant Ross saying of sober curious youth that “that wedge of society is huge.”

10 160. Defendants are deceptively and unfairly marketing *feel free* as a product
11 compatible with a sober curious lifestyle.

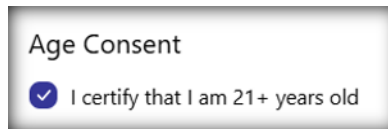
12 161. Defendants are unfairly and deceptively marketing *feel free* on social media
13 that can reach youth worried about protecting mental health outcomes, without disclosing
14 to them that it can cause depression, hallucinations, delusions, confusion, and substance
15 use disorder.

16 162. Defendants post Instagram ads targeted at the sober curious, falsely
17 presenting *feel free* as compatible with a sober curious lifestyle, with messages including:
18 “Sober curious? Just a couple sips of this will make you feel energized and focused
19 ✨ ✨”; “Alcohol got you down? 🥴 cheers to feeling great and not drinking ✨ Use
20 code: DRY40”; “So you don’t drink alcohol? Great! Balance is key for a healthy life.
21 Drinking botanic tonics helps you find focus and balance.”; and “So you don’t drink
22 alcohol? Great! Crack open a cold one with your wellness community and channel your
23 inner crystal energy.”

24 163. Defendants’ ads also incorporate memes which can appeal to Gen Z
25 consumers:
26
27
28



164. Defendants’ acts and practices are also unfair because Defendants fail to conduct appropriate age gating on their website to stop sales to children. When a consumer is making an online purchase, they are only asked to check a box that they are 21 years old:



165. As a result, a minor with internet access and their parent’s credit card can buy *feel free*. Failure to implement meaningful age gating, while marketing *feel free* to Gen Z youth is unfair.

166. Defendants have taken steps to maximize the reach of the deceptive and unfair marketing among Gen Z college students by carrying out a scheme of “college activations,” which they “borrow[ed] from the Red Bull playbook.”

167. Defendants started with partnerships with the athletic departments of three major colleges, with a “plan to actually roll out 76 more of those.”

168. Defendants continued and expanded the scheme after seeing that the impact of an initial college marketing campaign reached well beyond the school itself. Defendant Ross explained: “Sally’s going to school there, she gets introduced to it. But then when

1 she went home for the holidays, she introduced it to her family and friends, and we saw an
2 uptick in direct-to-consumer in places that we didn't have any store coverage."

3 169. The "college activations" were "massive," involving "thousands of
4 ambassadors on campuses," "walking around with backpacks, passing them out in the
5 library, going to the right Greek parties and having them there," and "preach[ing] the
6 benefits" of *feel free*, telling students that *feel free* was the solution to their stress.

7 170. According to Ross, these "college activations" created a "halo effect around
8 those schools. It's not just about the school. It's about networking, marketing." Thus,
9 these campaigns reached into Arizona, whether or not the schools were located here.

10 171. Defendants hired an Arizona State University student to distribute *feel free*
11 while he was in school. As a Direct Sales Distributor (DSD), he was responsible for
12 promoting and distributing *feel free* to retailers, retaining store shelf space, securing
13 product placement, and securing store promotion of *feel free*. Defendants have touted this
14 ASU DSD as one of their best in the country.

15
16 **IV. Despite Their Knowledge of Heavy and Escalating Use, Defendants**
17 **Deceptively and Unfairly Encouraged Consumers to Purchase *Feel Free***
18 **Repeatedly and in Greater Quantities.**

- 19 a. Defendants were aware that consumers were purchasing and
20 consuming *feel free* at levels that Defendants themselves recognized
21 as excessive, yet Defendants employed several strategies—including
22 a tiered rewards program incentivizing higher spending and a
23 subscription model that defaulted consumers into recurring purchases
24 at steep discounts—that had the effect of encouraging consumers to
25 buy *feel free* repeatedly and in ever-greater quantities. Defendants Had
26 Access to Customer Purchase Histories Reflecting Unusually Heavy Use
27 and Recognized That Some Consumers Were Exceeding Recommended
28 Consumption.

172. Defendants have the ability to monitor online consumers' purchase history, allowing them to determine when consumers are buying and consuming *feel free* at levels that "cause issues."

173. For example, on October 13, 2023, a consumer posted a review through the Better Business Bureau ("BBB"), complaining that *feel free* is addictive and that they were hooked on four to seven bottles per day. The consumer wrote that *feel free* will "ruin your life" and "the withdrawal[] is equivalent to getting off an opioid."

174. In response, on October 16, 2023, Defendant Botanic Tonics wrote that "based on our review of your online ordering history it seems you are consuming more than we recommend. Any substance that is abused can cause issues." Defendant Botanic Tonics added, "Sorry to hear you are having issues in your life."

**b. Defendants Deceptively and Unfairly Rewarded Increased
Purchasing Through a Rewards Program Called the "Cobalt
Club."**

175. Despite their knowledge that consumers purchase and consume *feel free* at dangerous levels, Defendants have encouraged and rewarded purchasing high volumes of their products by offering a rewards program called the "Cobalt Club."

176. The Cobalt Club is free to join, and it gives consumers rewards for purchases that can be redeemed for discounts on future purchases. The discounts become greater when consumers spend more. As *feel free*'s website notes, "[t]he more you spend, the better the benefits!"



177. The rewards program has three levels, with progressive benefits and discounts. Members earn points for each dollar they spend on *feel free* that can be redeemed

for discounts, and spending more on *feel free* makes earning points easier. For example, a consumer who spends \$400 on *feel free* will benefit from a “points multiplier” of 1.25x. The highest rewards level includes a 1.5x points multiplier and only becomes available to users after they spend \$1,500 on *feel free*. Higher levels also come with “exclusive sales.”

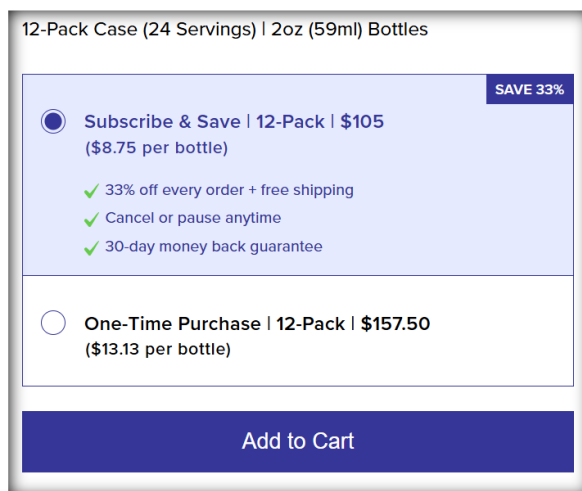
178. Defendants also give consumers points for posting reviews online, following Defendant Botanic Tonics on social media, and referring friends.

179. Cobalt Club points expire after 12 months, thus creating urgency for consumers to make use of their rewards by buying more *feel free*.

180. Defendants’ rewards program deceptively and unfairly incentivizes increased consumption of a harmful and addictive substance, which can cause addiction, negative health outcomes, and make it more difficult to quit consuming *feel free*.

c. Defendants Steered Consumers Toward Recurring Purchases Through Automatic Subscriptions and Substantial Subscription Discounts, Which Constitutes Deceptive and Unfair Practices for an Addictive Product.

181. From approximately 2020 through the present, Defendants’ website for *feel free* has deceptively and unfairly pushed consumers towards recurring purchases. When a consumer visits the *feel free* website to purchase the product, the website defaults to a “subscribe and save” option for a 12-pack case (or 24 servings) of *feel free*.



1 182. Consumers may not even realize that they are buying a monthly supply of 24
2 servings. When consumers add a product to their carts, Defendants do not initially disclose
3 the frequency of the recurring shipments. Only in the cart does “delivery every 30 days”
4 appear, but even then, it is not conspicuous. Instead, it appears in grey font, hidden under
5 the product description, and under the order total.

6 183. Defendants also make canceling a subscription unfairly difficult. While they
7 allow users to check out as a guest when making the purchase that sets up recurring
8 purchases, cancellation requires setting up an account on their website before being able to
9 find any option for cancellation.

10 184. Defendants further push consumers into purchasing high quantities of *feel*
11 *free* on a recurring basis by charging a steep premium for a one-time purchase, as compared
12 to the recurring purchase. A case of 12 *feel free* bottles costs \$105, with free shipping, if
13 purchased on a subscription basis. The same 12 bottles cost \$157.50, plus shipping costs,
14 if purchased on a one-time basis.

15 185. Such an extreme price difference is not reasonably avoidable, pushing
16 consumers toward recurring purchases, exposing them to a regular supply of an addictive
17 product delivered to their door.

18 **FIRST CLAIM FOR RELIEF**

19 **DECEPTIVE ACTS AND PRACTICES IN VIOLATION OF THE ARIZONA**
20 **CONSUMER FRAUD ACT**

21 **A.R.S. §§ 44-1521 through 44-1534**

22 **(Against Defendants Botanic Tonics and Jerry Ross)**

23 186. The State realleges all prior allegations of this Complaint as though fully set
24 forth herein.

25 187. The conduct described in the preceding paragraphs of this Complaint
26 constitutes deceptive acts, unfair acts or practices, fraud, false pretenses, false promises,
27 misrepresentations, or concealment, suppression or omission of material facts with intent
28

1 that others rely on such concealment, suppression or omission, in connection with the sale
2 or advertisement of merchandise in violation of A.R.S. §§ 44-1521 to 44-1534.

3 188. Defendants are “persons” within the meaning of A.R.S. § 44-1521(6).

4 189. Defendants are engaged in the sale and advertisement of tangible
5 merchandise to Arizonans, as defined in A.R.S. § 44-1521(5).

6 190. From approximately 2020 to present, Defendants engaged in deceptive acts
7 and practices in connection with the advertisement and sale of *feel free* including, but not
8 limited to:

- 9 a. Deceptively obscuring *feel free*’s kratom content and failing to
10 adequately disclose its risks of dependence, withdrawal, and other
11 material adverse effects by falsely stating and/or implying that: *feel free*
12 is a kava drink, as opposed to a kratom drink; *feel free* is safe and
13 without side effects; *feel free* is like sugar or caffeine; and failing to
14 disclose known health risks;
- 15 b. Deceptively obscuring that *feel free* is a dangerous product that will get
16 consumers high, cause addiction, and cause negative health outcomes;
- 17 c. Deceptively advertising and marketing *feel free* as a benign energy
18 drink despite its materially different risks;
- 19 d. Deceptively creating a health-and-wellness halo around *feel free*
20 through “natural,” fitness, and athletic advertising and marketing;
- 21 e. Deceptively encouraging consumers to drive cars, ride motorcycles, and
22 operate power tools while using *feel free* without disclosing its opioid-
23 like sedative effects;
- 24 f. Deceptively attributing *feel free*’s stimulant effects to kava rather than
25 kratom, including by representing that kava provides consumers with
26 “all-natural energy,” when in fact kava is a central nervous system
27 depressant with sedative properties, and *feel free*’s stimulant effect, if
28 any, is attributable to the kratom in the product;

- 1 g. Falsely stating and/or implying that *feel free* is a safe alcohol
2 replacement for alcoholics and the sober curious without adequately
3 disclosing its own addiction and withdrawal risks;
- 4 h. Deceptively stating and/or implying that consumers are making one-
5 time online purchases, when they are making recurring subscription
6 purchases; and
- 7 i. Falsely stating and/or implying that *feel free* is non-synthetic, despite
8 containing synthetic kava.

9 191. While engaging in the acts and practices alleged in this Complaint,
10 Defendants knew or should have known that their conduct was of the nature prohibited by
11 A.R.S. § 44-1522, subjecting themselves to enforcement and penalties as provided in
12 A.R.S. § 44-1531(A).

13 192. Defendants committed separate and independent violations of the ACFA
14 through each and every unfair, deceptive, false, or misleading representation, or omission
15 of material information.

16 **SECOND CLAIM FOR RELIEF**

17 **UNLAWFUL CONCEALMENTS AND OMISSIONS IN VIOLATION OF THE**
18 **ARIZONA CONSUMER FRAUD ACT**

19 **A.R.S. §§ 44-1521 through 44-1534**

20 **(Against Defendants Botanic Tonics and Jerry Ross)**

21 193. The State realleges all prior allegations of this Complaint as though fully set
22 forth herein.

23 194. The conduct described in the preceding paragraphs of this Complaint
24 constitutes unlawful concealments and omissions of material information in connection
25 with the sale or advertisement of merchandise in violation of A.R.S. §§ 44-1521 to 44-
26 1534.

27 195. Pursuant to A.R.S. § 44-1522, a practice of omission and concealment may
28 constitute a deceptive practice under the so-called “Act Clause” of the ACFA.

1 196. From approximately 2020 to the present, Defendants violated the ACFA in
2 connection with the advertisement and sale of *feel free* by concealing, suppressing, or
3 omitting material facts from potential purchasers with the intent that consumers rely
4 thereon, including, but not limited to, failing to disclose adequate information in its
5 advertisements and representations at the time of selling and advertising *feel free*:

- 6 a. About the risk of addiction posed by *feel free*;
7 b. About the negative health consequences and side effects of *feel free*;
8 c. That *feel free* will get consumers high;
9 d. That *feel free* is a kratom drink;
10 e. That consumers purchasing *feel free* online are making recurring
11 purchases; and
12 f. That *feel free* contains synthetic ingredients.

13 197. From approximately 2020 through at least 2025, Defendants failed to identify
14 kratom in the on-product description.

15 198. From approximately 2020 through at least 2022, Defendants failed to identify
16 the amount of kratom in the product.

17 199. Pursuant to Arizona law, a practice of omitting information in connection
18 with the sale and advertisement of merchandise may be a deceptive practice in violation of
19 the ACFA. *State ex rel. Horne v. AutoZone, Inc.*, 229 Ariz. 358, 361 (2012).

20 200. Defendants routinely made the material omissions set forth herein and this
21 pattern of unlawful omission constitutes a deceptive practice in violation of the ACFA.

22 201. While engaging in the acts and practices alleged in this Complaint,
23 Defendants knew or should have known that their conduct was of the nature prohibited by
24 A.R.S. § 44-1522, subjecting itself to enforcement and penalties as provided in A.R.S. §
25 44-1531(A).

26 202. Each and every instance of unfair, false, misleading, and/or deceptive
27 conduct constitutes a separate and independent violation of the ACFA.
28

THIRD CLAIM FOR RELIEF
UNFAIR PRACTICES IN VIOLATION OF THE ARIZONA CONSUMER
FRAUD ACT A.R.S. §§ 44-1521 through 44-1534
(Against Defendants Botanic Tonics and Jerry Ross)

203. The State realleges all prior allegations of this Complaint as though fully set forth herein.

204. The ACFA prohibits the use of “unfair” acts and practices in connection with the sale or advertisement of merchandise.

205. Unfair acts and practices are those that are harmful to consumers, not reasonably avoidable by consumers, and not outweighed by countervailing benefit to consumers or to competition.⁵

206. Defendants engaged in unfair acts and practices in connection with the advertisement and sale of *feel free* in violation of the ACFA by:

- a. Unfairly marketing the product to uninformed consumers and vulnerable groups without adequately disclosing the risk of addiction and withdrawal;
- b. Unfairly marketing the product to uninformed consumers and vulnerable groups without adequately disclosing the risk of negative health outcomes;
- c. Unfairly promoting dangerous polysubstance use;

⁵ Section 5 of the Federal Trade Commission (“FTC”) Act prohibits “unfair or deceptive acts or practices in or affecting commerce.” 15 U.S.C. § 45(a)(1). Clarification states that a practice is “unfair” within the meaning of the FTC Act when it offends established public policy—like landlord tenant acts—and when the practice is otherwise immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers. See *F.T.C. v. Sperry & Hutchinson Co.*, 405 U.S. 233, 244, n.5 (1972); see also *Love v. Pressley*, 34 N.C. App. 503, 517, 239 S.E.2d 574, 583 (N.C. 1977) (landlord’s violation of laws protecting residents constituted unfair or deceptive acts or practices within the meaning of North Carolina’s consumer fraud act). Arizona follows FTC guidance on the application of consumer fraud statutes. See A.R.S. § 44-1522(C).

- d. Unfairly disguising, and marketing *feel free*, as an energy drink, masking that it is a kratom product;
- e. Unfairly disguising *feel free* as a wellness product, masking that it is a kratom product;
- f. Unfairly marketing *feel free* as an alcohol replacement, masking that it is a kratom product;
- g. Unfairly marketing an addictive product to recovering alcoholics as an alcohol replacement;
- h. Unfairly marketing *feel free* to sober curious Gen Z youth as an alcohol alternative;
- i. Unfairly selling a dangerous and addictive product with inadequate age gating, putting children at risk; and
- j. Unfairly encouraging consumers to purchase *feel free* repeatedly and in greater quantities.

207. With respect to the unfair acts and practices described above, these acts and practices caused or were likely to cause substantial injuries to consumers that were not reasonably avoidable by consumers and were not outweighed by countervailing benefits to consumers or to competition.

208. While engaging in the acts and practices alleged in this Complaint, Defendants knew or should have known that their conduct was of the nature prohibited by A.R.S. § 44-1522, subjecting themselves to enforcement and penalties as provided in A.R.S. § 44-1531(A).

209. Consumers are suffering, have suffered, and will continue to suffer substantial injury as a result of Defendants' violations, including, but not limited to: economic loss through deception, addiction, negative health outcomes, and financial distress.

210. The harm caused by Defendants' acts and practices was not reasonably avoidable by consumers.

211. Defendants' acts and practices were not outweighed by any benefit to consumers or competition.

212. Absent injunctive relief by this Court, Defendants are likely to continue to injure consumers and harm the public interest.

PRAYER FOR RELIEF

WHEREFORE, the State of Arizona respectfully requests that the Court:

213. Pursuant to A.R.S. § 44-1528(A)(1), issue a permanent injunction in accordance with Ariz. R. Civ. P. 65(d)(1), enjoining and restraining (a) Defendants, (b) their officers, agents, servants, employees, attorneys, and (c) all persons in active concert or participation with anyone described in part (a) or (b) of this paragraph, directly or indirectly, from engaging in deceptive, misleading, or unfair acts or practices, or concealments, suppressions, or omissions, that violate the ACFA, A.R.S. § 44-1522(A), including specific injunctive relief barring Defendants from engaging in the unlawful acts and practices set forth above;

214. Pursuant to A.R.S. § 44-1528(A)(2), order Defendants to restore to all persons in interest any monies or property, real or personal, which may have been acquired by any means or any practice in this article declared to be unlawful;

215. Pursuant to A.R.S. § 44-1528(A)(3), order Defendants to disgorge all profits, gains, gross receipts, or other benefits obtained as a result of their unlawful acts alleged herein;

216. Pursuant to A.R.S. § 44-1531, order Defendants to pay to the State of Arizona a civil penalty of up to \$10,000 for each willful violation by each Defendant of A.R.S. § 44-1522;

217. Pursuant to A.R.S. § 44-1534, order Defendants to reimburse the State for its costs and attorneys' fees incurred in the investigation and prosecution of Defendants' activities alleged in this Complaint;

218. Pursuant to A.R.S. § 44-1201, require Defendants to pay pre-judgment and post-judgment interest to the State and all consumers; and

219. Award the State such further relief as the Court deems just and proper under the circumstances.

DATED this 23rd day of September, 2026.

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